

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the right to education and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a cornerstone of Education 2030 agenda. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that all UNESCO Member States are expected to submit a national report on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be participatory and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a good opportunity for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to refer to their reports when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: Romania

Organization or entity responsible for the preparation of the report: Ministry of Education and Research

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level

1. Ratification of the Convention²

Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

2. **Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education**

Has your country ratified the Protocol?

☐ Yes

☒ No, please briefly explain the difficulties encountered:

No difficulties encountered.

3. **Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system**

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☒ Yes ☐ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☐ Yes ☐ No

*This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the **main legal texts** (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.*

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☒ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

The National Council for Combating Discrimination (NCCD) refers to the provisions of the Convention when addressing petitions that have as object possible acts of discrimination in education.

Based on the information provided by the Superior Council of Magistracy, recent available case law include three situations when the violation or failure to ensure the right to education was invoked. In two of these cases the NCCD had issued a decision on the existence of the act of discrimination (in one case a fine was also applied) and the final decision of the Court pronounced in favour of the parties claiming the violation of their right to education.

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

This corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴

- 1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☐ Other:

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- *Non-discrimination in the admission of pupils to educational institutions*
- *Non-differential treatment, including of foreign nationals resident in your country*

- **Legislative framework and regulations on non-discrimination, equal access to education and equal opportunities; regulations prohibiting discrimination in education**

- **The Romanian Constitution** (2003). For details, see the previous Report, pg. 2;

- **The Law of National Education no. 1/2011**, published in the Official Monitor no. 18 from 10.01.2011, as subsequently amended and supplemented. For details, see the previous Report, pg. 2, 6-7;

Please note that the Law of national education 1/2011 forbids discrimination and promotes equal chances in education through its numerous articles. The law provides for equal rights of access to all levels and forms of education with no form of discrimination for all the Romanian citizens, the citizens of the European Union member states, of the European Economic Space and of the Swiss Confederation, to the minor requesting or having obtained any form of protection in Romania, to foreign minors or stateless minors whose residence on Romanian territory is officially recognized according to the law, to all persons with special educational needs.

The Ministry of Education and Research's constant concern of ensuring equal opportunities in education to all students, as well as of strengthening the legal framework to combat discrimination was reflected in the additions to the Law of National Education no.1 / 2011 (LNE) by means of normative acts, such as:

- **The Law no. 38/2019** - to support the continuation of studies by children with special educational needs or of those who cannot get to school for medical reasons by organizing education at home or within health care units. In order to integrate children with locomotor disabilities in full-time education, it was decided to purchase elevators or alternatively, the - educational process will take place in a classroom located on the school's ground floor.

- **The Law no. 48/2019** - for the amendment and supplement of art. 63 of LNE – was adopted in order to support the education of minorities in the mother tongue, by setting up study groups (classes) with a smaller numbers of pupils than those provided by law.

- **The Law no. 221/2019** *for amending and supplementing the Law of National Education no 1/2011*, published in the Official Monitor no. 929 from 19.11.2019, introduces new provisions meant to ensure a safer education environment, by combating bullying, and to foster access to compulsory general education, respectively.

Thus, art. 7 has been supplemented with a new paragraph which prohibits the behaviours consisting in psychological violence-bullying in all education units and education and training facilities.

In addition, a new article has been added after article 56 which provides for the introduction of training sessions/ refresher courses on topics related to psychological violence- bullying in teachers' continuous training programmes. The aim is that teachers acquire the competencies needed to identify bullying related issues and build the capacity to apply adequate educational strategies.

Regarding the access to compulsory general education, a new paragraph has been added to art. 16, providing on the obligation of pre-university education units to enrol persons that do not have a personal identity number. This measure eliminates the administrative impediment of attending compulsory education when lacking a personal identity number.

- **The Government Ordinance no. 137/2000**, republished, on *preventing and sanctioning of all forms of discrimination*, published in the Official Journal no. 166 from 7.03.2014. For details, see the previous Report, pg. 2;

- **The Law no. 272/2004** republished, on *protecting and promoting the child's rights*, published in the Official Journal no. 159 from 05.03.2014, as subsequently amended and supplemented. For details, see the previous Report, pg. 3;

- **The Law no. 202/2002** republished, on *equal opportunities and treatment between women and men*, published in the Official Journal no. 326 from 05.06.2013; as subsequently amended and supplemented. For details, see the previous Report, pg. 3;

- **The Law no. 116/2002** on *preventing and fighting against social marginalisation*, published in the Official Journal no. 193 from 21.03.2002, as subsequently amended and supplemented. For details, see the previous Report, pg. 4;

- **The Law no. 489/2006**, republished, on *religious freedom and the general regime of cults*, published in the Official Journal no. 201 from 21.03.2014, as subsequently amended. For details, see the previous Report, pg. 4- 5;

- **The Law no. 122/2006** updated, on *asylum in Romania*, published in the Official Journal, no. 428 from 18.05.2006, as subsequently amended and supplemented. For details, see the previous Report, pg. 5 and also please note the following relevant provisions:

- the right of minor asylum seekers to have access to pre-school and compulsory school education, under the same conditions as minor Romanian citizens, as long as no measure to displace them or their parents from Romania is enforced (Article 17);

- regarding art. 18 which provides for the minor asylum seekers' right to education, in view of fostering their access to the Romanian education system, minor asylum seekers benefit, free of charge, from an intensive preparatory course for learning Romanian in view of enrolling in the national education system;

- the beneficiaries of a form of protection have access to all forms of education, under the conditions provided by law for Romanian citizens (art. 20). Paragraph 2 provides that unaccompanied minors benefit from the same protection offered to Romanian minors in difficulty, under the conditions laid down by law.

- also, a subsequent article, art. 20 ^ 2 provides for the access to education of the minor beneficiaries of international protection, which includes the right to attend, free of charge, a preparatory course for learning Romanian for the duration of a school year in order to enrol in the national education system. At the end of this course, the language proficiency is assessed and the appropriate study year for enrolment is established.

- **The Law no. 448/2006**, republished, on *the protection and promotion of the rights of persons with disabilities*, published in the Official Monitor no. 1 from 3.01.2008, as subsequently amended and supplemented, regulates the rights and obligations of persons with disabilities granted in view of their social integration and inclusion.

The principles governing the protection and promotion of people with disabilities' rights include among other: the prevention and combat of discrimination, equality of chances, the adaptation of society to the person with disability etc. (art. 3).

Art. 6 provides for the rights of people with disabilities, which includes the right to education and professional training. Section II (art. 15-19) is dedicated to Education. People with disabilities have free and equal access to any form of education, regardless of age, in accordance with the type and degree of disability and educational needs, including lifelong learning opportunities (art.15). The section also provides for: the specific support and facilities that persons with disabilities are entitled to in regard to education, such as, educational support offered by support teachers (art. 16); the specific rights within the education process, such as educational support services, appropriate furniture in

classrooms, technical equipment, adequate educational resources, including when sitting exams (art.18); and the specific measures the public authorities have the obligation to take in view of fostering persons with disabilities' access to education establishments and institutions (art.19).

The Government Emergency Ordinance no. 194/ 2002, republished, *on the regime applicable to foreigners in Romania*, published in the Official Monitor no. 421 from 5.06.2008, as subsequently amended and supplemented - represents the frame regulating the entry, stay and exit of foreigners on the Romanian territory, their rights and obligations as well as specific measures for the control of immigration in accordance with the obligations undertaken by Romania in international documents to which it is party.

Article 3, para. 6 provides that foreigners attending the educational system at any level have access, without any restrictions, to the educational and training activities in society.

Article 79 on the Assistance for the integration of foreigners – para. 1 provides that the Romanian State ensures the conditions for integrating foreigners holding a right to stay in Romania in the economic, social, and cultural life of the state, as well as the access to the education system.

Article 132 on the Access of Minor Foreigners to Education – para. 1 provides that minor foreigners living in Romania have access to the compulsory education system under the same conditions as the Romanian minor citizens. In view of the enrolment of foreign students in the national educational system, the Ministry of Education and Research establishes, under the law, the limits and conditions on the acknowledgement and equivalence of the studies undertaken in the country of origin (para. 2).

- **The Government Ordinance no. 44 /2004** *on the social integration of foreigners who have acquired international protection or a right of residence in Romania, as well as of citizens of the European Union Member States, the European Economic Area and of citizens of the Swiss Confederation*, as published in the Official Monitor no. 93 from 31.01.2004, as subsequently amended and supplemented. The ordinance aims to facilitate the social integration of the following categories of persons: foreigners who have acquired international protection in Romania and foreigners who have acquired a right of residence in Romania and citizens of the European Union Member States, the European Economic Area and citizens of the Swiss Confederation, respectively. The social integration is ensured by means of specific activities aimed at cultural accommodation, counseling and for learning the Romanian language. In addition, the foreigners who have acquired international protection in Romania are ensured access to a range of rights, among which the right to education.

Section 3 of the Law (art. 9-12) regulates the access to education of foreigners enjoying international protection in Romania. Thus, this category of persons has access to all forms and strands of education under the same conditions laid down by law for Romanian citizens. Minors are entitled to attend a free, intensive preparatory language course and other educational activities carried out in educational establishments in view of fostering the enrolment in education. In addition, minors also receive the state allowance for children, under the same conditions laid by law for the Romanian children. Art. 11 provides for the recognition of diplomas and the certification of studies and qualifications obtained in the country of origin.

Article 14 and article 35¹, respectively refer to the provision of intensive preparatory Romanian language courses for adult foreigners having acquired international protection in Romania (free of charge) and for the foreigners having acquired a right of residence in Romania and citizens of the European Union Member States, the European Economic Area and citizens of the Swiss Confederation, respectively.

For the combat of *school segregation*, the provisions of Minister's Order no 1540/2007 on the prohibition of school segregation of Roma children and the approval of the Methodology

for preventing and eliminating the school segregation of Roma children are being observed by all educational establishment.

In order to strengthen the legal provisions combatting the school segregation phenomenon, the Ministry of Education and Research adopted the *Framework Order no 6.134 / 21.12.2016 on the prohibition of school segregation in pre-university education*. The Order expands the segregation criteria including disabilities/special educational needs (SEN), family socio-economic status, residence and school performance criteria, besides the ethnic ones.

Order no 6.134 / 2016 also provides for the promotion in schools of the *inclusive school* concept, that is a democratic and friendly school environment which capitalizes on the social, ethnical and cultural diversity, where all children are respected and integrated without discrimination and without exclusion based on ethnicity or mother tongue, gender, disability / special educational needs, family social and economic background, residence or school achievements. Preventing and eliminating school segregation phenomena is an imperative condition for the creation of an inclusive school.

Pursuant to Order no 6.134 / 2016 and in view of its implementation, the *Order no. 5633/2019 on the approval of the Methodology for monitoring school segregation in the pre-university education* was adopted.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☒ Regulations ensure equal access to all levels and types of education
- ☒ Policies and programmes ensure equal access to all levels and types of education
- ☒ Other:

Each year, the Ministry of Education and Research issues ministerial orders in order to regulate the organization and conduct of national end-of-cycle examinations, as well as the access to an educational cycle or further studies at a higher level. All these normative acts contain provisions meant to ensure the non-discriminatory legal framework for all the categories of pupils. Some of the most recent orders are mentioned below.

- Order no. 4532/2020 for the amendment and completion of the Order of the Minister of National Education, interim, no. 4,948 / 2019 on the organization and conduct of admission to state high school education for the school year 2020 -2021, regulates the granting of distinct places for students with special educational needs in special and mainstream schools, over the number of places in those schools.

- *Order no. 3277/2020 on the approval of the calendar and methodology for enrolling children in primary education for the school year 2020-2021* contains clear provisions regarding the possibility of reconfiguring school districts in order to eliminate school segregation that may result from the residence criteria.

- *Order no. 4948/2019 on the organization and conduct of admission to state high school education for the school year 2020 - 2021* includes provisions regarding the continuation of studies by pupils who participated in the admission process in previous years and who were enrolled in an educational unit, either in high school or vocational education, but who either withdrew, interrupted their studies, had to repeat the grade or who wish to transfer from vocational education to high school or, within the same type of education.

At the same time, measures were taken so that 8th grade graduates from previous series in the following situation can continue their studies: pupils who did not turn 18 until the beginning

of the 2020-2021 school year and who participated in the admission process in previous years, but who were not enrolled in an educational unit. These students can participate in the admission process in state high school education for the school year 2020 – 2021.

- *Order no. 4950/2019 on the organization and conduct of the national baccalaureate exam - 2020* includes special provisions for students with visual / hearing impairments / autism spectrum disorder / specific learning disabilities for which the exam tests are adapted to their specific needs, in order to ensure the equality of chances.

- *Order no. 3,124 / 2017 for approving the Methodology for providing the necessary support to pupils with learning disabilities* that regulates the appropriate assessment procedures for detecting pupils' learning disabilities (dyslexia, dysgraphia and dyscalculia), as well as the appropriate type of intervention in view of providing them individualized and personalized learning. This normative act contains clear provisions regarding the ways to adapt the examination procedures of the National Evaluation (for pupils graduating the 8th grade) and the National Baccalaureate Exam for pupils with specific learning disabilities.

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

Please refer to the legislative framework and regulations mentioned at 1.1.

In keeping with the provisions of the Law of National Education, positive discrimination policies and measures that stimulate school / university participation of Roma children / young people are in place and consist in the allocation of distinct budgeted places for enrolment in high schools / universities are in place. Distinct budgeted places for university are also granted to high-schools graduates from rural areas or small towns.

Regarding gender equality, the Romanian education system does not face discrimination on this criterion.

•Policies and programmes

The project *România Educată* (Educated Romania) is a project developed by the President of Romania based on a vision and strategy document for the period 2018-2020. Starting from the needs of the present society and anticipating the future ones, the strategy is based on three pillars that would ensure a new architecture for the Romanian education system: the personalization and quality assurance of the educational process; rendering the education system more flexible; enhancing the adaptability of the system to external changes and future trends. To reach these aims, 12 goals have been formulated, among which: learner centred teaching, with focus on the specifics needs of the learner and of each community, supporting early childhood education and lifelong learning, providing for the equitability and quality of the education system for each learner.

National Strategies in the field of Education. The Strategic Framework for Education and Training in Romania includes five sectoral strategies: the *National Strategy for the Reduction of Early school Leaving*; the *National Strategy for Romanian Tertiary Education 2015-2020*; the *National Strategy for lifelong learning 2015 - 2020*; the *Vocational Education and Training Strategy of Romania 2016 - 2020*; the *Strategy for modernizing the educational infrastructure 2018-2023*. The issues of equality of opportunities and of equal access to

education are substantially approached in the *Strategy on reducing early school leaving* and the *Lifelong Learning Strategy*.

The **Strategy for the Inclusion of Romanian Citizens belonging to the Roma Minority for the period 2015-2020** is the main public policy document in the field of social inclusion of Roma ethnics in Romania. Two of its strategic objectives target education and aim to increase the level of educational inclusion of Roma citizens, combat social gaps that increase the risk of school dropout and illiteracy and ensure their equal, free and universal access to quality education.

Please also see the measures included in the following section which also foster the equal access to education.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|---|---|
| ☒ Providing financial incentives and fellowships | ☒ Providing auxiliary assistance |
| ☒ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☒ Adapting curricula and methods |
| ☒ Training teachers on inclusive education | ☒ Providing language classes to newcomers (e.g. refugees) |
| ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☒ Eliminating administrative barriers to education ⁷ |
| ☐ Providing re-entry programmes for young mothers | ☒ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☒ Valuing diversity in schools |
| ☐ Other: | ☒ Combatting stereotyping and stigmatisation |

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Please refer to the legislative measures, policies and strategies mentioned at 1.1. and 1.2.

- **Projects and programs that ensure equal access to education, at all levels and types of education, through specific measures**

- The Relevant Curriculum, Open education for all” Project (CRED Project) is a large-scale project, implemented between 2017-2020 by the Ministry of Education and Research in Romania. The general objective of the CRED Project is to prevent the early school leaving by means of systemic measures targeting the innovative and sustainable implementation of

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

the new curriculum. These measures aim at enhancing the access of primary and secondary school pupils to quality learning experiences. An important part of the Project will be devoted to the training of 55.000 teachers from primary and lower secondary education in order to prepare them to successfully implement the new curricula. Other main relevant objectives aim at: facilitating a unitary and coherent, competency-based curricular approach among decision-makers and educational partners, in order to ensure equal opportunities for pupils belonging to vulnerable groups, including those reintegrated into second-chance programs, and increasing the quality and relevance of teaching and learning activities in schools with vulnerable population.

-The Romania Secondary Education Project (ROSE project) is a program aimed at reducing the drop-out rates in secondary and tertiary education and increasing the successful completion rates of the baccalaureate exam. The implementation of the ROSE project started in 2015 and will continue until 2022. The project has three components. The first two are designed to address issues of an academic and social nature that lead to poor student performance in upper secondary education, as well as in the early years of tertiary education.

Under the first component, less performing high schools in the public education system are awarded grants, in order to achieve the objectives of the project: reducing the dropout rate in high schools, increasing the graduation rate and improving performance at the baccalaureate exam.

The second component is addressed to public universities, which are awarded grants to support students at risk.

-The Second Chance Program and the School after School Program are educational programs that promote equal opportunities in terms of access, participation and completion of studies.

- The Second chance Program is addressed to adolescents, young people, and adults, with diverse social backgrounds and of different ages, who have not attended or have not completed primary and/ or secondary education. The program offers the possibility to continue and complete compulsory education without having to interrupt any professional activities or family life. The Second chance Program is a flexible program designed to motivate students and help them complete it. Innovative elements were introduced in the educational process, such as: the modular curriculum and the credit system for basic education, the evaluation, certification and recognition of skills previously acquired by students, the provision of an individualized training. See also the previous Report, pg. 9-10.
- The School after School Program is an educational program complementary to the compulsory school program, which offers opportunities for formal and non-formal learning, the consolidation of skills, remedial learning and accelerated learning through educational, recreational and leisure activities and is aimed at both primary school and secondary school pupils.

The Pilot Programme Hot meals in schools was launched in 2016 as a pilot project in 50 pre-university educational establishments and continued annually. The Programme consists in providing pre-schoolers and pupils, especially those from disadvantaged backgrounds or from vulnerable communities, with a hot meal. The pilot programme had a positive impact in diminishing the drop-out rate, while improving school attendance of pupils and fostering the development of healthy food habits in children.

Due to these positive effects, in February 2020 the Romanian Government approved the extension of the Programme, which will be implemented in 150 educational establishments beginning from the second semester of the school year 2019-2020.

In August 2017, Romania joined the EU School Scheme and subsequently, by Government Decision no 640/2020 Romania's Programme for Schools for the period 2017-2023 was adopted, as well as the budget for its implementation in the school year 2017-2018. The Programme aims to provide pre-schooler, as well as primary and lower secondary pupils from state and private education with fresh fruits and vegetables, milk and dairy products and bakery products.

- **Other social protection measures and programmes**

In addition the Ministry of Education and Research has continued the implementation of the social support measures previously started, devoted to vulnerable groups, ranging from socially to ethnically disadvantaged students in order to foster inclusion and participation, as well as retention in education. These measures include: social vouchers to stimulate the participation of children from underprivileged families in preschool education (kindergarten), free transportation (by school buses) for students from isolated communities to school / reimbursement of transportation expenses for student shuttle for distances up to 50 km (with the adoption of Emergency Ordinance no. 70 / 2020, as mentioned above, pupils are now entitled to free transport), free school supplies for children from socio-economic disadvantaged families, daily snacks for children in pre-primary, primary and lower secondary schools consisting of a dairy and a bakery product (the Croissant roll and milk programme), as well as fruits and vegetables, special scholarships for children from disadvantaged groups to foster high school attendance (the Money for high-school programme); special scholarships for children attending professional schools (Professional Scholarship); special financial support for children from disadvantaged groups to purchase a personal computer (Euro 200 programme), the functioning of classes with reduced number of students in rural areas and in communities with minority population. Also see the previous Report, pg. 9.

- **Gender equality curricular aspects**

The pre-university education curriculum fosters the development of competences in the field of personal, socio-emotional development and health education, by means of school subjects, and who implicitly or explicitly take into account the issue of gender equality, such as:

- the school subject Personal Development and Civic Education for the primary grades;
- the school subject Counselling and personal development, studied at all lower secondary grades level, and the school subject Counselling and orientation, respectively, which is studied at high school level;
- the school subject Social Education, studied at the lower secondary level, which contributes to the development of the understanding and reflection on one's own rights, as well as to the acquisition of democratic values and the development of skills for a culture of democracy;
- the school subject Education for health (primary, secondary education), is an optional course provided at national level and it is a component of the National Program for Education for health in the Romanian school.
- the optional discipline Ready for life. Education for life and the community taught at lower secondary education level and the optional discipline Adolescence and self-knowledge, taught at high school level.

In higher education, the range of courses offered within the different study programmes cover aspects of gender equality and in addition, various projects aimed at promoting gender equality and combating discrimination are implemented in universities.

At national level, the continuous training of teachers on issues related to gender equality is ensured through courses accredited by the Ministry of Education and Research.

- **Preparatory language courses for refugees**

As provided for by Government Ordinance no. 44/ 2004, mentioned above, foreigners having acquired international protection in Romania and foreigners with a right of residence in Romania and citizens of the European Union Member States, the European Economic Area and citizens of the Swiss Confederation are entitled to a preparatory Romanian language course. The order of the ministry of education and research no. 5924/2009 approves the Methodology for the organization and conduct of this course, the procedures on the elaboration, approval and distribution of the course syllabus and the corresponding textbooks of the preparatory language course, as well as the procedures on the assessment of the participants having attended these courses.

Similarly, children of foreigners having acquired international protection in Romania and of foreigners with a right of residence in Romania and of citizens of the European Union Member States, the European Economic Area and of citizens of the Swiss Confederation are provided with such an preparatory language course. Order no. 5925/2009 approves the Methodology for the organization and conduct of the preparatory Romanian language course and the school enrolment of these children, as well as the procedures on the elaboration, approval and distribution of the course syllabus and the corresponding textbooks.

- **Specific measures taken during the COVID 19 sanitary crisis**

In the context of the COVID-19 sanitary crisis, which determined an emergency switch to distance learning, the Ministry of Education and Research has taken measures to ensure access to distance learning activities for all students, including those from disadvantaged socio-economic backgrounds, enrolled in pre-university education units. To this end, the Ministry is currently implementing the Programme Home School, whose objective is the procurement of electronic devices connected to the internet for the equipment of state pre-university education units, in view of facilitating distance learning activities for pupils from disadvantaged backgrounds. The Programme, as well as the allocation of the required funds were approved by the Government Decision no 370/2020.

Also, during the confinement period when all education institutions had to suspend their face-to-face activities, the Ministry of Education and Research took the following measures in order to ensure the continuity of education:

- the launch of the online platform *Digital pe educared.ro* by the Ministry. The Platform centralizes different types of digital resources and useful information, available for free, providing teachers the necessary means to capitalize on the new technologies for providing pupils with distance learning classes. Thus, the platform provides learning resources, digital tools for developing such resources, collaborative learning platforms, useful communication and remote collaboration tools, as well as learning communities facilitating experience and resource sharing between teachers. At the same time, the teachers and pupils have access to the textbook platform, containing the digital version of all textbooks approved by the Ministry of Education and Research, which can be accessed and downloaded for free: <https://www.manuale.edu.ro/>.
- This measure was accompanied by the launching of the *Teleşcoala* (Tele-school), an educational TV programme implemented by the Ministry of Education and Research in partnership with the Romanian Public Television (TVR), offering lessons for 8th and 12th grade pupils, in order to ensure continuity in preparation for the national exams. The lessons were broadcasted from Monday to Friday on two

channels - TVR 2 and TVR 3 - and they can also be watched on the Romanian Public Television's YouTube channel and on the website www.tvr.ro. The *Teleşcoala* Programme was also provided in the Hungarian language.

- In order to further support the pupils taking national examinations this year, the Ministry of Education and Research in collaboration with the National Centre for Evaluation and Examination, the national body responsible for the elaboration of national exam tests, made available preparation tests (including in Hungarian, German and Ukrainian). The solutions to these preparation tests were provided and explained during the lessons delivered within the *Teleşcoala* TV programme.
- Shortly after the closure of schools, the Ministry of Education and Research provided teachers with information and support regarding free licence educational applications (e.g. the suite of educational applications offered by Google and Microsoft) and platforms that could be used for the distance learning activities with pupils. In parallel, teachers were provided with online training opportunities for building digital competences through live streamed training sessions delivered by e-learning experts within the national project Relevant curriculum, open education for all (CRED). In addition, teachers also benefited from the continued support of the education experts from the Teacher Training Houses (national resource centres for the training and professional development of the teaching staff) located in each county and the Municipality of Bucharest, who also provided recommendations on the different e-learning tools available.

The Ministry of Education and Research maintained permanent contact with the pre-university educational institutions through the county school inspectorates, who had the obligation to monitor the pupils and teachers throughout the school closure and to report daily to the Ministry.

- In addition, there were several other initiatives from organisations and private partners aimed at supporting the provision of distance learning, providing video lessons on different subjects or topics of interest for pupils, webinars for teachers on the use of digital tools, learning content, and other opportunities for personal development.
- A line for psychological support on COVID-19, called "Ambassador for Community" was also launched, within a partnership between the Ministry and a Romanian non-governmental organization. The initiative aimed at providing teachers, pupils and parents with free of charge online or on the phone personalized counselling in order to better manage the crisis situation. To this end, two telephone lines, as well an email address were made available.

Within this project a video material was posted each week on the Ministry's online platforms, in which psychologists talked about the solutions that teachers, pupils and teachers could adopt in order to overcome the crisis.

- In order to cater for the needs of technologically disadvantaged pupils and teachers, the Ministry with the support of private partners launched the initiative "Reaction to Education"- (<https://narada.ro/reactie-pentru-educatie/rezultate/>). The initiative enabled the identification of teachers and pupils in need of the required material resources for distance learning (such as laptops and internet connection), followed by the provision of such resources.

The academic environment also joined forces with the Ministry in this respect. The Foundation of the University of Agronomic Sciences and Veterinary Medicine of Bucharest (USAMV Foundation), runs a project through which high school pupils from disadvantaged communities will receive tablets, with a 24 months free Internet connection.

In addition, the “Euro200” National Program, implemented since 2004, contributed by supporting pupils and students with limited financial opportunities in purchasing a personal computer by means of a financial aid.

- Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

Please provide reference to the relevant laws and provisions:

Article 272, para. 1 of the Civil code provides that marriage can be concluded if the future spouses are 18 years old.

At para. 2, the same article provides that, for sound reasons, minors aged 16 may marry on grounds of a medical advice, with the consent of parents or legal guardian, where applicable, and with the approval of the guardianship court of the district where the minor resides. In case one of the parents does not give his/ hers consent, the guardianship court takes note of the discrepancy and decides in the child's best interest.

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Is compulsory and free of charge pre-primary education available in your country?

☒ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

Early childhood education is aimed at children aged 0 to 6 years old and comprises two levels: ante-preschool education for children aged 0-3 years old and preschool education for children aged 3-6 years old, respectively.

In Romania, preschool education is organized according to the Law of National Education 1/2011 and has a duration of 3 years, being divided in three age groups : *lower group* (3-4 years), *middle group* (4-5 years) and *upper group* (5-6 years).

The minimum age for access to preschool education is 3 years old. Children can attend this level of education until the age of 6, when the Education Law no. 1/2011, with subsequent amendments and completions, provides for their enrollment in the preparatory class, part of compulsory primary education.

Within the current context, of the 2030 Education Agenda, Romania has committed to providing at least one year of free and compulsory pre-school education. Thus, the education law provides that the *upper group* in preschool education will become mandatory by 2020 at the latest, the *middle group* by 2023 at the latest, and the *lower group* by 2030, respectively.

☒ Pre-primary education is free of charge for all: Please provide the duration:

In Romania, the preschool education is free, throughout its entire duration. The state provides basic funding for all children enrolled in state preschool education and, from 2016, it provides funding for the children enrolled in private and denominational education, as well.

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

• General legislative framework and strategies

The Law of National Education no. 1/2011 as subsequently amended and supplemented regulates the access to early childhood education and its organization, through specific provisions, such as: the right to lifelong learning begins with early childhood education as a right guaranteed by law; the starting age, the maximum number of children per group, the gradual mainstreaming of preschool education; its structure and forms of organization; the elements that underpin the curriculum for early childhood education.

The strategic documents that coordinate the Romanian education system, such as: the *National Strategy for the Reduction of Early School Leaving*; the *National Strategy for lifelong learning 2015 - 2020*; the *National Strategy on the Protection and Promotion of the Rights of the Child*, include directions for action and improvement measures for the early childhood education. These refer to ensuring access to quality early childhood education for all children, with a focus on expanding the preschool education and substantially increasing the number of children accessing early childhood education and care, and providing qualified human resources (childcare educators) in all geographical areas, especially in rural / disadvantaged areas (through additional teacher training, monthly stipend, etc.); the training of pre-school teachers for the implementation of the specific curriculum and innovative and inclusive teaching-learning methodologies.

In 2020, a previously developed draft Strategy on early childhood education is currently being updated in view of approval by decision makers. The draft Strategy sets a number of priorities: improving access to early childhood education, with a focus on support measures for disadvantaged groups; improving the quality of educational services for children aged 0-6 years old; developing alternative and community options to improve the efficiency of early childhood education services; coordination between education and other sectors in order to develop a convergent early childhood development program.

• Curriculum, learning resources and facilities

The work on developing a *Curriculum for early childhood education from birth to the age of 6*, started in 2008. The curriculum for early childhood education, comprising the study plan, the subject curriculum and the implementation methodology have been reviewed by the Ministerial Order no. 4694/2019. Thus, the new curriculum for early childhood education emphasizes the development of skills that are prerequisites for the development of key competencies that are to be acquired during further schooling. . Also, the Romanian system uses various resources, guides for parents and kindergarten / nursery staff (e.g. the *Good practice guide for the early childhood education of children from 3 to 6/7 years old*), modules for training kindergarten staff on topics such as: the development of the preschool child, the kindergarten and the community, school readiness, new reference points in the early childhood education in kindergarten.

- **Access and participation**

During the period 2018-2020, important efforts were made to regulate and promote the preschool level of early childhood education. In this context, steps have been taken to update the regulations on the methodologies for the organization and functioning of nurseries and other preschool early childhood education services (the revision of GD no. 1252/2012).

The periodic regulations issued by the Ministry of Education and Research on preschool education include a series of provisions meant to support the access and participation of all children aged 3-6 years old in preschool education. Thus, the conditions for enrolling in kindergarten include support criteria for children from disadvantaged backgrounds (e.g. priority is given to orphans who have lost one or both parents, to children with siblings attending the same education establishment, children with disabilities)

Moreover, in order to ensure wider access to preschool education, guides for parents have been developed at the national level, in view of informing and supporting them in the kindergarten enrolment process. In addition, the Ministry of Education and Research provides access to the database of the authorized / accredited kindergartens in Romania.

In order to support the participation in preschool education, steps were taken to ensure the annual implementation of the Kindergarten Voucher Program on stimulating the participation of children from disadvantaged families in preschool education, based on the *Law no 248/2015*. The number of the annual beneficiaries amounts to approximately 40,000. Its implementation is in connection with other measures such as the provision of food and school supplies in kindergartens (Law 126/2004, with subsequent amendments and completions, provides for the free provision of school supplies and backpacks for preschoolers and pupils from socio-economically disadvantaged groups).

The organizing conditions of preschool education are flexible, in order to ensure the widest possible access to this educational level. Thus, three types of program are offered: normal program (4 hours), extended program (8-10 hours) and weekly program (Monday to Friday). Children are usually organized in age groups, but the establishment of heterogeneous groups is also encouraged, especially where it is not possible to form groups according to age.

With regard to the preschool education network, the funds allocated to education from the European Regional Development Fund during 2014-2020 have also been directed with priority to areas with low enrolment rates in preschool education.

- **Statistical data**

- The participation rate of children aged between 4 years and the compulsory school age (ET 2020 European indicator) in Romania has increased in recent years reaching 89.6% in 2018.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

In Romania, compulsory education has a duration of 11 years and includes primary, lower secondary (gymnasium) and the first two years of upper secondary education (the Law of National Education no. 1/2011, art. 16, paragraph 1). According to the legislation, compulsory education is full-time education (art. 25, paragraph 2) and only in exceptional situations the education process may be organized part-time.

According to the provisions of the Law of National Education no. 1/2011 as subsequently amended and supplemented, primary education in Romania is compulsory and lasts 5 years. It comprises the preparatory class and grades I-IV, and it is organized for students aged between 6 and 10 years old.

Children who have turned 6 by the beginning of the school year are enrolled in the preparatory class. At the written request of parents or legal guardians, children who will reach the age of 6 by the end of the calendar year may be enrolled in the preparatory class, if their psychosomatic development is appropriate, as well as children with special educational needs, aged between 6 and 8 years old at the beginning of the school year.

Regarding the number of students, a primary level classroom is coordinated by one teacher (teacher for primary education) and comprises an average of 20 students (between min. 12 and max. 25 pupils). The Ministry of Education may approve the organization and functioning of classes with a number of pupils below the minimum threshold or above the maximum one established by law in order to respond to specific local conditions (isolated locations, classes taught in the language of national minorities, etc.). In general, the classes are homogeneous in terms of pupils' age.

- Is primary education available free of charge to all?

☒ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

According to the Romanian Constitution (art. 32, paragraph 4) and to the Law of National Education no. 1/2011 as subsequently amended and supplemented, the state primary and secondary education is free and accessible to all (art. 9, paragraph 3). The state provides core funding for the ante-preschoolers, preschoolers and pupils enrolled in the state education system, as well for those in private and denominational preschool education and in private and denominational general compulsory education, studying in accredited educational establishments, according to the legislation in force. Also, the state ensures the core funding of the accredited private and denominational professional* and high school education. The funding provided is ensured within the limits of the standard cost per pupil, preschooler or ante pre-schooler, respectively (art. 9, paragraph 2).

The Ministry of Education and Research, through its specialized body, establishes annually the standard cost per pupil, a cost that is the basis of the core funding. The core funding of preuniversity education is done according to the principle "the financial resource follows the pupil", based on which the budgetary allocation due to a pupil is transferred to the educational unit where he / she studies.

*The *professional education* is part of the initial TVET in Romania.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

- Please briefly provide information on the reforms taken:

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Please see the information provided in the section on primary education which includes general information encompassing secondary education also.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☒ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

The secondary education in Romania includes: the lower secondary education (gymnasium) and upper secondary education (high school education and technical and vocational education). Despite sufficient places being provided for the attendance of compulsory years of upper secondary education (grades IX-X) for gymnasium graduates, the transition rate in upper secondary education was 94.3% in 2018/2019, with small variations from one year to another and relatively constant values by gender.

- **Lower secondary education (gymnasium)**

Gymnasium lasts 4 years (covering grades V-VIII), and the typical schooling age interval is 11-14 years old. However, there are also gymnasium pupils who exceed the official age for this level of education (11.5% were 15-year-olds and 3.4% were 16-year-olds, in 2018/2019).

Regarding the number of pupils per classroom, the classes in secondary education comprise an average of 25 students (between min. 12 and max.30 pupils).

- **Upper secondary education**

The upper secondary education has the following structure:

- The high school education, includes grades IX-XII / XIII, with theoretical, aptitude-based and technological routes (fields of specialization). The typical age range of schooling is between 15-18 years old. The average number of pupils per classroom is of 25 pupils (between min. 15 and max. 30 students).

- In addition, the vocational and dual vocational education, respectively, comprise years I-III / IV. The typical age range of schooling is between 15-17 years old.

The technological high school education and the vocational education (including the dual system) are part of the *technical and vocational education system*.

- **Technical and vocational secondary education and training in Romania**

Regarding the technical and vocational secondary education and training, in Romania, this strand of education consists of *vocational education*, including *dual vocational education*, *technological high school education* and *post-secondary education*.

According to the provisions of the Law of National Education no 1/2011, the Romanian *technical and vocational education (TVET)*, including dual education, is organized in view of ensuring the acquisition of knowledge, skills and competences mainly for employment purposes, for level 3, 4 and 5 professional qualifications, according to the National Qualifications Framework. From the school year 2019-2020, level 4 and 5 professional qualifications are provided within the dual vocational education system as well.

The training provided through TVET is based on professional training standards approved by order of the Minister of Education and Research, at the proposal of the National Centre for the Development of Vocational and Technical Education, and developed in consultation with the social partners.

The ***vocational education*** (ISCED-P 352), lasts minimum three years, providing graduates with a professional qualification at EQF3 and it is organized in vocational schools in cooperation with employers which provide pupils compulsory in-company training as part of the work-based learning (WBL). WBL might also be offered in schools and represents about 50% of the education programme.

The lower secondary (gymnasium) graduates that have interrupted their studies may be enrolled in a vocational education programme, until the age of 26, in view of obtaining a professional qualification.

In 2017/18, the dual vocational education system was introduced, representing an additional form of organizing the *vocational education*, which is provided at the request of companies that participate in the training provision.

Pupils enrolled in *vocational education*, including the *dual system*, receive a monthly scholarship from the state. In addition, pupils can benefit from the scholarship granted by the companies with whom the vocational and technical education units have partnership contracts. In the case of dual education, the value of the scholarship granted by the employer is at least equal to the value of the scholarship granted by the state.

The ***technological high school education*** (ISCED-P 354) represents a field of study within the high-school education, which has a 4 year duration providing specializations in the following profiles of studies: technical, services, natural resources and environmental protection. Upon graduation, pupils receive an upper secondary school leaving diploma and the EQF level 4. These education programmes are provided by technological high schools and sometimes by colleges.

When completing compulsory education (at the end of 10th grade), learners may opt for and enrol in a short VET programme (ISCED-P 352) offering a professional qualification only (EQF 3 through 720 hours of practical training).

The pupils enrolled in professional and technical education with a duration of minimum 3 years are entitled to free board and accommodation in the corresponding school facilities. The same provisions apply to the pupils enrolled in dual education attending a school situated outside the locality of residence. (Law no 1/2011, art. 12, paragraph 8¹ and 9.)

The state supports the vocational education and the technological high school education by conferring recognition of vocational or technological high school studies for non-university tertiary education, the partial funding of the tuition fees within the state post-secondary schools and by providing special scholarships or other form of material support.

The pupils who graduated the technical and vocational education, without completing the high school education, may be included in preparation programmes in view of graduating upper secondary education.

The **post-secondary education** (non-university tertiary education) (ISCED_p 453), is provided by post-secondary schools within technological schools or colleges /universities at the request of companies or based on learners' interest. They provide secondary school graduates with an opportunity to advance in their qualifications (EQF level 5). This strand of education is partially subsidized by the state. However, the special post-secondary is fully subsidized. The state supports and stimulates, including financially, study programs for *post-secondary education*, in public-private partnership.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☒

- Please provide reference to the relevant laws and provisions:

In Romania, the Labour Code (Law no 53/2003) stipulates that a person acquires the capacity to work at the age of 16 (art. 13, paragraph 1). The following paragraph establishes that a person may conclude an employment contract at the age of 15, with the consent of his/hers parents and in accordance with his/hers physical and cognitive development and abilities, if this does not endanger his/her health, development and professional training. That paragraph provides that the minimum age for employment in heavy, hazardous, and harmful jobs is 18 years old.

According to the Law of National Education no 1/2011 subsequently amended and supplemented, compulsory education ends with the completion of the first two years of upper secondary education (grades IX and X). The typical, official age corresponding to the last year of compulsory education coincides with the legal age for employment on the labour market, but is subject to the adequate development of the young person.

Art. 16 of the Law of National Education stipulates that the attendance of full-time education may cease at the age of 18, ensuring thus, correlation with employment in any job. By corroborating the provisions of the Labour Code and those of the Law of National Education, the legal framework for the employability of an adolescent or young person is outlined, in accordance with the acquisition of adequate skills needed for the completion of job related

tasks at work, while respecting the right to work and ensuring the necessary premises for non-discrimination in the workplace and avoiding any discrepancies between the completion of compulsory education and employability.

Other provisions stipulated by the Labour Code which regulates the participation on the labour market of young people who could normally be enrolled in compulsory education, include:

- the legal termination of the contract of 15-16 years old employees, if the parents withdraw their consent (Labour Code, art. 56, paragraph j);
- the duration of working hours for young people under the age of 18, is 6 hours / day and 30 hours / week (Labour Code, art. 112, paragraph 2). They are not allowed to perform additional work (art. 124) or night work (art. 128);
- young people under 18 are entitled to a lunch break of at least 30 minutes for daily working time exceeding 4 hours and 30 minutes / day (art. 134, paragraph 2);
- young people under 18 benefit from an additional rest leave of at least 3 working days (art. 147).

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*
- *Non-differential treatment, including of foreign students*

⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

¹⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

¹¹ See: Article/Paragraph 1(1).

Please see the previous Report - the relevant information included in section 1.1 & 1.2 on the Law of National Education (pg. 6) and the subsections *Access to higher education according to individual capacities* and *Measures adopted by the government to ensure that there is no discrimination on the ground prohibited by the Convention preventing the access and graduation of university studies, both in public and private institutions, respectively*, within section 3.3 Higher Education (pg. 13-15).

The Government Ordinance no. 137/2000 on prevention and sanctions of all forms of discrimination, for details see the previous Report, pg. 2;

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”.

- ☒ Higher education is generally free of charge
- ☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Please see the previous Report, subsection *Financial costs in higher education* in section 3.3 (pg. 15).

In order to foster the participation in tertiary education, students from rural areas as well as disadvantaged groups and non-traditional students were supported by the allocation of distinct places in universities. Thus, in the academic year 2018-2019, 1,326 high school graduates from rural areas and 635 Roma high school graduates enrolled for bachelor studies.

In the period 2017-2020, measures to support the development of tertiary education were taken aiming to enhance the access and participation of students and pupils, including disadvantaged or underrepresented groups, of staff from higher education institutions and of adult in continuous vocational and technical education:

- Supporting the exemption of students with outstanding results from the payment of school fees and granting them scholarships;

- Supplementing the exemption of students from paying fees, based on merit, by means of a program to support those in need, mainly at the institutional level, by granting social scholarships;
- Extensive social support measures - subsidies for accommodation and meals covered by supplementary funding;
- Implement a student loan program in order to provide funding, as well as the national regulations required in this regard;
- Encourage the attraction of students from underrepresented groups and those who have followed non-traditional learning paths, including adults and people of Romanian ethnicity living abroad.
- Increase the transparency of information and provide guidance on educational opportunities and outcomes, as a basis for choosing the educational path and help reduce early school leaving.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

Please see the previous report, section 3.4 *Adult education and lifelong learning* (pg. 17-20)

- **Strategies and programs supporting adults’ participation to continuous learning and training**

- The National strategy on the social inclusion and poverty reduction 2015-2020

The strategy on the social inclusion and poverty reduction contains an action plan that allows for considerable progress to be made in reducing poverty and promoting social inclusion for vulnerable people, families and groups. The strategy aims to coordinate and update the current set of poverty reduction strategic actions.

At the same time, in order to ensure complementarity and coordination with other approaches in the field of social inclusion, it incorporates elements of sectoral strategies and other specific areas such as combating child poverty, reducing discrimination against Roma and integrating marginalized communities.

The main vulnerable groups targeted by the Strategy are the poor people; the children and young people without parental care and support; single or dependent elderly people; Roma people; people with disabilities; people living in marginalized communities.

The strategy envisages interventions in the following key areas: employment; social transfers; social services; education; health; housing; social participation; local targeting of policies and strengthening institutional capacity to reduce poverty and promote social inclusion. The main competencies considered in the Strategy are: the professional and entrepreneurial competences, the competence of learning how to learn and lifelong learning.

- Romania's strategy for the inclusion of Romanian citizens belonging to the Roma minority for the period 2014 - 2020

The aim of the Strategy is "the socio-economic inclusion of Romanian citizens belonging to the Roma minority at a level similar to the rest of the population and ensuring equal opportunities by initiating and implementing public policies and programs in areas such as education, training and employment work, health, housing and small infrastructure, culture, social infrastructure, preventing and combating discrimination.

The main vulnerable groups identified are especially those at risk of socio-economic exclusion and social marginalization. The Roma people with low chances of access to the formal labour market consist mainly of: young people; people with low education; women; long-term unemployed people, especially those in areas where employment opportunities are limited; people without professional skills or with skills that are not required on the local labour market; people with disabilities, etc.

Regarding *the increase of access to education*, the main proposed action lines (with reference only to the educational ones) aim at: extending / developing the "School after School" programs at the level of communities where the share of Roma pupils is significant; continuing "Second Chance programs" or functional literacy programs for children, young people and adults (especially those who have left school early); providing facilities and distinct places in high schools/universities for young Roma who wish to attend pre-university (high school, vocational or post-secondary school) and / or university education (including master's and / or doctoral level); facilitating the access of Roma children to dual vocational education; development of counselling and guidance activities, as well as tutoring; designing and implementing programs and activities for parental education and encouraging the participation of Roma parents in their children's learning; carrying out extracurricular activities with Roma and non-Roma pupils and children in order to learn / stimulate interethnic cooperation; providing counselling services to Roma pupils at risk of dropping out of school and to their families.

To stimulate employment, the main action lines aim at: offering free information and professional counselling services to jobseekers; offering free mediation services on vacant or newly created jobs; providing free consultancy and assistance services for self-employment start-ups; organizing professional training courses for job seekers; providing free assessment and certification services for skills acquired non-formally and informally; inclusion in apprenticeship programs at work.

- The *Second chance Program*

Created in the 2000s, the Program has been continued annually and improved in order to better address the needs of its beneficiaries. The participation rate has increased yearly. According to the statistics for the year 2018-2019, 5,876 beneficiaries attended level I of primary education, while 8,515 attended level II of secondary education.

In order to support the implementation of the *Second chance Program* and its adaptation to recent changes in the Romanian education system, a series of national funding programs have been launched aimed at supporting the anti-poverty measures package, within the Human Capital Operational Program (POCU) 2014- 2020.

Another example is the CRED Project - *Relevant Curriculum, open education for all*, 2018-2021 (mentioned above), co-financed by POCU 2014-2020, which aims to prevent early school leaving. One of the project's main activities targets explicitly the *Second chance Program*, by: updating the operating methodologies, developing a new school curriculum (study plans and subject curricula) for the *Second chance Program*, developing appropriate educational resources and training teachers in specific areas.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☒ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

Please see the previous Report, section 3.5 Quality education, noting the following additions:

- Regarding the standards in force, please note that the health and safety of all children are essential, sine-qua-non conditions for school functioning. The public and private schools, not observing the minimum safety and health regulations are following a closing procedure unless issues are approached by the local education authorities and local administration.
- The new set of standards on the quality of education, developed and piloted by the Romanian Agency for Quality Assurance in Pre-University Education since the school year 2014-2015 is expected to be finalised in the school year 2019-2020. Upon entry into force, the following aspects will be evaluated, among others:
 - The participation in education and in particular the participation of disadvantaged / vulnerable groups and individuals within the educational unit as well as, the progress made in particular;

- The learning outcomes, in particular those of disadvantaged / vulnerable groups and individuals within the education unit and particularly, the progress made;
- The students' well-being (and, in particular, the progress made);
- The ability of teachers, school managers and the community to enhance school participation, learning outcomes and well-being of children / students;
- The involvement of all actors concerned in improving the quality of school life;
- Equity of education, the elimination of discrimination and school segregation, the promotion of educational inclusion and interculturality.
- Legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence

In the period 2017-2020, the following laws were adopted:

- *Law no. 221/2019 amending and supplementing the Law of National Education no 1/2011* prohibits behaviours consisting in physical violence - bullying in educational and training premises (art. 7, paragraph 1). The law provides for the introduction of specific teacher training modules (art. 56) and defines the notion of psychological violence - bullying.

The methodological norms for the application of the Law no 221/2019 regarding the provisions on psychological violence-bullying were approved recently, by order of the ministry of education and research no. 4.343/2020. The aim is to facilitate the creation of a safe and positive climate in the educational units, based on respect for the person, non-discrimination, motivation for learning and ensuring the well-being of the ante- preschoolers / preschoolers / pupils. The methodological norms provide a practical tool for professionals working with ante- preschoolers / preschoolers / pupils in the education system, children's families, authorities responsible for protecting children against violence, including bullying and service providers specialized in the rehabilitation of child-victims, witnesses and / or children with aggressive behavior. Promoting activities to prevent and combat all forms of bullying and cyberbullying in the pre-university education system is another objective, along with the identification, reporting and intervention, by a multidisciplinary team, in case of bullying and cyberbullying incidents.

- *Law no. 260/2019 amending and supplementing the Law of National Education no 1/2011* establishes the disciplinary liabilities of the teaching, auxiliary and management staff regarding the violation of the conduct norms that prejudice the interest of education and the institution's prestige (art. 280).

- *Law no. 174/2018 amending and supplementing the Law no. 217/2003 on the prevention and combating of domestic violence.* According to this law the Ministry of Education and Research has the obligation to introduce in the applied curriculum learning activities related to: equal opportunities and treatment between women and men, mutual respect, nonviolent resolution of conflicts in interpersonal relationships, gender violence and the right to personal integrity, as well as the combat of discriminatory stereotypes based on gender roles (art. 10, paragraph 1). The law also establishes intervention procedures for the protection of victims (art. 10, para. 2), provides educational training programs for teachers, parents, and children, in order to prevent domestic violence, harassment and sexual violence, including partnerships between school, community and families (art. 10, paragraph 3).

Consequently, the Ministry of Education and Research has implemented measures for the introduction of learning activities related to topics provided by the law (mentioned above), within the classroom curriculum. At the same time, the Ministry supported the organization of educational programs for teachers, parents and children through the school inspectorates, in order to prevent domestic violence, harassment and sexual violence and the establishment of school-community-family partnerships.

- *Order no. 4831/2018 on the approval of the Framework Code of Ethics for pre-university teaching staff.* This document stipulates that all teachers' councils within pre-university

education units will establish their Professional Ethics Code, in compliance with the provisions of the *Framework Code of Ethics for Teaching Staff from pre-university education* and in compliance with the provisions of *Law no. 477/2004 on the Code of conduct of the contractual personnel from public authorities and institutions*. The Code establishes a set of values, principles and norms of conduct meant to contribute to the institutional cohesion and the cohesion between all those involved in the educational activity, by means of establishing and maintaining a climate based on cooperation and fair competition.

- *The National strategy for the protection and promotion of the rights of the child 2014-2020* envisages a number of specific objectives focused on the development of services that contribute to the prevention of child separation from the family and on the prevention and combating of all forms of violence. Relevant objectives include: increasing the children's, parents', professionals' and the general population's degree of knowledge and awareness of all forms of violence; decreasing children's exposure to violence in the media and online environment; strengthening the capacity of public service providers to prevent and combat all form of violence against children.

- *Decision no. 1050/2014 on the approval of the National Strategy in the field of equal opportunities between women and men for the period 2014-2017* and the *General Action Plan for the period 2014-2017* for the implementation of the Strategy which provide specific objectives to combat gender stereotypes in the education system and to combat the phenomenon of gender violence.

Measures taken include:

- developing actual implementation methodologies regarding violence / bullying;
- determining in cooperation with teachers and school counsellors the training needs on the topic of violence / bullying / deviant behaviour, etc.
- counselling students or parents who have repeatedly committed acts of violence / bullying;
- hiring school counsellors in the education establishment lacking such personnel (especially in urban areas);
- assisting families in preventing and combating violence or bullying;
- identifying resource pupils that would participate in prevention or intervention activities in existing cases of violence / bullying;
- organizing debates by schools in which students, teachers and school counsellors can freely express their views on violence and bullying in school.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☒ Performance monitoring systems

☒ Measures taken to increase women in leadership positions in education

☐ Other:

--

- Please briefly elaborate further on the measures taken:

- **Teachers' average salaries**

To increase the attractiveness and competitiveness of the teaching profession, the Romanian Parliament approved a new pay scale for teachers. According to the Law no. 153/2017 subsequently amended and supplemented, teachers' revenues will gradually increase until 2022. In January 2019, the first increase took place, granting the first tranche of $\frac{1}{4}$ of the difference between the basic salary foreseen in 2022 and that of December 2018. The other salary increase tranches will be granted in 2020.

According to the new pay scale, the salaries of pre-university teachers foreseen for 2022 vary depending on seniority, teaching degree/ scientific title, type of initial training (highest / lowest).

The new pay scale highlights the reduction of the differences between salaries among teachers, depending on seniority or teaching grades.

In addition to the basic salary, a teacher may receive, as the case may be, other incomes (bonuses, allowances, bonuses / merit grades or other benefits or sums they are entitled to).

- **Initial training and continuous professional development; minimum standards and qualifications required for the teaching profession**

In Romania the employment and training of teachers are regulated by the Law of National Education no 1/2011. Beyond its provisions, in Romania there are currently no new professional standards for the teaching profession to provide for a unitary and common basis for the teacher training and evaluation. In order to address this matter, the Ministry of Education and Research has recently launched a public consultation on this topic.

According to the regulations in force, in Romania the initial training of teachers is funded from the public budget and is carried out at higher education level, in universities: teachers for preschool and primary education are trained in the *Departments for teacher training for preschool and primary education* (DPIPP), and teachers for the other levels are trained within the *Departments for teaching staff training* (DPPD).

DPPD includes courses carried out throughout higher education studies and are organized on two levels: level I consists of specific courses integrated in the undergraduate training programs which allow graduates to teach in compulsory pre-university education; level II consists of specific courses integrated in the master training programs, allowing graduates to teach at post-compulsory education level.

Currently, decision-makers in the field of education have decided to review the training policies for teachers. In accordance with the provisions of the Law of National Education no. 1/2011, the provision on organizing initial teacher training within the *didactic master* was submitted to debate. Recently, the Ministry of Education and Research organized a commission responsible for drafting the design of the respective didactic master. In addition, places were funded for didactic master pilot programs in the academic year 2020-2021.

The current curriculum for initial teacher training includes several elements aimed at preparing teachers to work with different categories of pupils in view of ensuring their inclusion in education (e.g. intercultural education, integrated education, etc.).

Concerning **continuous training**, in Romania, teachers have the obligation to accumulate 90 transferable professional credits (CPT) during a 5 consecutive years period, by

participating in continuous training programs, offered by private or public providers. The most important continuous training public providers are the *Teacher Training Houses*.

Continuous training programs are either determined by specific measures aiming at reforming the education system (in which case courses are usually provided free of charge), or at the choice of teachers, in order to better meet the needs of their pupils (in which case the courses are usually paid for by teachers).

Data from recent reports show that teachers in Romania accumulate a number of training hours above the European average, and most of trainings are paid by them. Also, the constant participation in professional training courses is a widespread practice among pre-university teachers in Romania.

The most recent and important initiative at national level regarding in-service teacher training is the Project Relevant curriculum, open education for all - CRED, carried out between 2017-2021. One of its major activities currently underway aims to ensure the training of 55,000 teachers in primary and secondary education, in order to successfully implement the new national curriculum, focused on key competencies. Thus, within the project, teachers benefit from free continuous training courses, focused on innovative ways of using the new school curricula in the classroom and on adapting learning activities to the specific needs of pupils, including those at risk of dropping out of school.

Besides the continuous training courses, teachers have at hand various other ways for professional development (pedagogical meetings, methodological commissions, transnational mobilities, etc.).

Recently (February 2020), the Ministry of Education and Research launched a public debate on the draft of a new methodology regarding the awarding of the merit gradation for the teaching staff in pre-university education. The main novelty brought by the new normative act is a better focus on the capitalization of teachers' participation in prevention and combating school dropout activities, on integrative projects that foster the consolidation of the school culture based on progress, cooperation and inclusion.

• **Measures taken to strengthen the social status and attractiveness of the teaching profession**

The measures on the increase of teachers' basic salaries also aimed at increasing the attractiveness of the profession and its socio-economic status.

In addition to this measure, several civil society initiatives also contribute to this aim:

- In the last 12 years, the *National Alliance of Student Organizations* in Romania has organized the annual *Bologna Teacher's Gala*, during which university teachers are awarded.
- The *MERITO project*, initiated by Romanian Business Leaders, which in 2018 and 2019 was under the High Patronage of the President, awards pre-university teachers for proven responsibility, professionalism, and creativity in their work.
- In 2018, the *MENTOR Project (MOL Romania and the Foundation for Community)* awarded teachers for their devotion to students and parents.
- In 2019, the *Association Values in Education* awarded school principals for exceptional results in school management, as part of the *Edu Leadership Gala*.
- Similar initiatives are organized annually at local level by town halls and county councils.
- Within the *CRED Project*, the *Creators of education* national competition was initiated, which awards examples of innovative good practices in education.

- Have there been instances of discrimination as regards the training for education personnel in your country?

- Yes: Has your government addressed this issue?
 - ☐ Yes
 - ☐ No
 - ☒ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

- ☒ Curriculum includes human rights education
- ☒ Educational and/or extracurricular activities are organized on human rights education
- ☐ Other:

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

Please see the previous Report, section 3.8 Private education and religious and moral education, pg. 28-29. In addition, please note the following additions:

- **The curriculum for private education in Romania**

The study plans and the corresponding subject curricula must comply at least by 80% to the national curriculum used in state education and with the national standards.

- **Financing private education in Romania**

From 2016, the state provides basic funding for all children enrolled in accredited private and confessional education. The financing of private educational units is made according to

¹²

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

the financial norms in force and can be supplemented by fees paid by parents. Tuition fees are set by the private educational establishments autonomously, within the general framework established by law. Due to the tuition fees required, low-income people have limited access to private education.

• **Trends during the period 2017-2020**

Statistical data from the Romanian education system reveal very small shares of pupils enrolled in private education: 4-5% - in ante-preschool and preschool education; 1.2% - in primary and lower secondary education (gymnasium); 2% - in high school education. In recent years, there have been two major trends regarding private education: an increase in the number of requests for the establishment of private educational units and a diversification of the profiles and specializations offered to candidates by the existing private educational establishments.

The best represented segment in private pre-university education is preschool education and there is an increase in the number of groups / classes organized according to the principles of recognized educational alternatives (in accordance with art. 59 of Law no 1/2011).

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

The legislative framework and the regulations regarding the non-discrimination in education mentioned therein, apply also to private education.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

Yes ☒ No ☐

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation protect the right to education of national minorities
- ☒ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☒ Curriculum is adapted to national minority needs
- ☒ Teachers are trained to adapt to national minority needs

- Other:

--

- Please provide a brief description of the provisions:

- **Constitutional laws and/or legislation protect the right to education of national minorities; Legislation or regulations guarantee the right of national minorities to study in their mother tongue**

Please see the previous Report, section 9. Rights of national minorities, pg. 29-30.

Other relevant normative documents on the rights of national minorities are:

- *the Law no 33/1995 on the ratification of the Framework Convention for the Protection of National Minorities, concluded in Strasbourg on 1st February 1995*, specifies the commitments made by Romania to promote equal opportunities for access to education at all levels, for persons belonging to national minorities, as well as to ensure appropriate conditions for teacher training, recognizing the right of persons belonging to a national minority to set up and manage their own private education and training institutions;
- *Ordinance no 137/2000 on the prevention and sanctioning of all forms of discrimination* (mentioned herein above) defines discrimination and the acts that constitute discrimination, providing also the sanctioning of these acts, including those that prevent access to education on grounds of nationality or ethnicity.

In close connection to the legal regulations is the activity of government structures, such as the State Secretariat for Education in Minority Languages, within the Ministry of Education and Research, which monitors the organization and development of education for the persons belonging to national minorities in Romania, seeking constantly to improve the quality of education for national minorities within the Romanian education system. The Directorate for Minority Language Education operates within this Secretariat, being responsible for ensuring the access of children and young people from national minorities to the different forms and types of education for minorities, ensuring equal opportunities for education and quality standards of education for minorities.

- **Curriculum is adapted to national minority needs**

The education for the persons belonging to national minorities comprises two forms of organization: schools offering teaching in the mother tongue, that is all the school subjects are taught in the respective mother tongue except for the subject *Romanian language*, and schools offering teaching in the Romanian language or a language different than the maternal, within which pupils belonging to the specific national minorities are entitled to study the maternal language along with other specific subjects, upon request.

The school subject *Maternal language* (*Communication in mother tongue* studied during preparatory class – grade II and *Maternal language and literature* studied during grade II and IV and during secondary education) is studied in each grade during the pre-university education, being assigned an equal number of study hours as the discipline *Romanian language* (the official language).

In the pre-university educational system the school subjects specific to the teaching in the language of national minorities include: the *Maternal language (and literature)*, the *History and traditions* of each respective national minority and music - the school discipline *Music and movement* in primary education and *Musical education* in gymnasium. The teaching of these school subjects is provided upon the request of pupils belonging to the specific national minorities that attend educational establishments providing teaching in the Romanian language or a language different than the maternal one.

The above-mentioned school subjects regarding music were recently introduced, within the context of the curricular reform started in 2012. The corresponding subject curriculum includes specific repertoires of songs.

In the same curricular context, the school subject *History* consolidates the representation of minorities, by means of topics such as: *Communities of minorities on the territory of present-day Romania; Yesterday's and today's childhood in the local community; Historians and chroniclers on minority personalities; Historic places in the community: monasteries, streets and historic houses in the community, monuments of the heroes, monuments representative for the ethnic communities in Romania.*

In accordance with the provisions of the Law on National Education, in primary and secondary education provided in the languages of national minorities, the subjects *History* and *Geography of Romania* are taught in the mother tongue of minorities, using subject curricula and textbooks identical to those used in the classes taught in Romanian, with the obligation to transcribe and acquire the Romanian toponymy and proper names in the Romanian language (art. 46. para. 8).

Along with the necessary legislative support for designing a curriculum with specific features, which would contribute to preserving the identity of minorities, the school subjects included in the curricular areas *Man and society* (such as *History, Civic Education, Geography*) and *Arts*, in particular, include now more content elements which enable a better knowledge of the cultural specificity of minorities in Romania on behalf of the majority pupils. For example, the school subject *History* includes topics related to the past of minorities within the entire Romanian history subject curricula (grades IV, VIII and XII). In addition, the aspects related to minorities are emphasized within the topics on the economic, cultural and political relations with the countries of origin. Some examples include topics such as: *Local autonomies and central institutions in the Romanian area (IX-XVIII centuries); Ethnic, confessional diversity and political solutions in modern Romania; National minorities in twentieth century Romania; Romania and religious tolerance in the 20th century.*

The curriculum at school's decision, mentioned in section 7. *Respect for human rights and fundamental freedoms*, includes since 2008 the optional course (school subject) *the History of minorities in Romania*, for pupils in 10th grade. The subject curriculum was elaborated based on the principle of coexistence and of constant interaction between minorities and the majority. These features have deeply marked the Romanian identity, influencing many aspects of the social and cultural life, from the first urban structures to the artistic avant-garde of the 20th century; other underlying principles are multiperspectivity and multiculturalism.

- **Teachers are trained to adapt to national minority needs**

According to the Law of National Education (art. 45, paragraph 11), teachers who teach in the language of national minorities have the right to training and development in the language of instruction, in the country or abroad.

The continuous training of teachers teaching in the languages of minorities or teaching the respective maternal language is ensured by means of trainings provided by school inspectorates, Teacher Training Houses (the main providers of continuous teacher training), universities, as well as with the support of national minority unions or national minority teacher unions. In 2018, the Continuous Teacher Training Centre in Hungarian in Oradea, Bihor County was set up with the aim of providing upgrading activities and continuous training for teachers and auxiliary staff teaching in Hungarian.

Within the CRED project, one of the guidelines for the implementation of the new curriculum is dedicated to the *History and traditions of minorities*.

In order to support the history teachers teaching this optional course, a teacher handbook was elaborated, at the initiative of *Project on Ethnic Relations* and of the Department for Interethnic Relations within the Romanian Government.

During the school years 2017-2020, education in the mother tongue was provided to the Hungarian, German, Ukrainian, Slovak, Roma, Serbian, Croatian, Czech and Italian minorities. During the same time frame the study of the mother tongue was provided to the Hungarian, Roma, Ukrainian, Turkish, Russian, Serbian, Polish, Bulgarian, Croatian, German, Slovak, Greek, Italian and Czech minorities.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

- **Educational standards in educational institutions**

The *Emergency Ordinance 75/2005 on the quality assurance of education* regulates the quality assurance of initial and continuous academic or professional training programs and activities.

Its provisions apply to all education providers that is educational institutions, operating in Romania, as well as to Romanian education organizations legally operating in the territory of other states, according to the relevant regulations in force.

The ordinance includes provisions regarding the methodology on education quality assurance, internal and external education quality assurance, the attributions of the two Romanian quality assurance agencies (the Romanian Agency for Quality Assurance in Pre-University Education/ARACIP and the Romanian Agency for Quality Assurance in Higher Education/ ARACIS) and the accreditation of education providers (i.e. educational institutions) and study programs.

By Government Decision no. 1534/2008, the reference standards and the performance indicators for the evaluation and quality assurance in pre-university education were approved. These are national standards, which apply to state and private pre-university education.

- **National Evaluations**

The *Law of National Education no. 1/2011* contains specific provisions regarding the evaluation of pupils attending schools with teaching in minority languages (art. 45 para. 12). Thus, all subjects included in national evaluations are translated into the mother tongue of the candidates so that the National Evaluation at the end of gymnasium, as well as the Baccalaureate exam include tests for the assessment of communication skills in the mother tongue.

- **School textbooks in minority languages**

The Ministry of Education and Research provides teaching resources specific to the school subjects taught in the mother tongue (art. 45 paragraphs 12 and 13). These can be textbooks developed in the language of instruction of national minorities, textbooks translated from Romanian or import textbooks, endorsed by the Ministry of Education and Research, for the case of textbooks that cannot be printed due to the reduced circulation.

- **Higher Education**

The *Law of National Education no. 1/2011* (art. 135) contains provisions on the organization of higher education for national minorities. The study programs offered can be organized in: higher education institutions within which faculties / study lines / study programs with teaching in the mother tongue operate; multicultural and multilingual higher education

institutions (in which case sections / lines with teaching in the languages of national minorities are set up); within higher education institutions, where groups, sections or lines of teaching can be organized in the language of national minorities. In national minorities higher education, teaching is for all three university studies cycles: bachelor, master and doctorate, as well as in postgraduate education, in the mother tongue (art. 135 para. . 4).

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

The Law of National Education no. 1/2011 as subsequently amended and supplemented, at art. 2, paragraph 6 provides that the rights guaranteed to Romanian citizens (that is, equal rights of access to all levels and forms of pre-university and higher education, as well as to lifelong learning, without any form of discrimination) are equally recognized to minors who request or have acquired a form of protection in Romania, to foreign minors and stateless minors whose stay on the territory of Romania is officially recognized according to the law. The amendments brought between 2017 and 2019 refer to aspects regarding the schooling of foreign pupils / students in pre-university / university education (especially scholarships) and substantiate the regulations on the implementation of these provisions (such as, specific methodologies for admission to studies and schooling).

In 2019, the *Government Ordinance no. 44/2004 on the social integration of foreigners who have acquired international protection or a right of residence in Romania, as well as of the citizens of the European Union member states, the European Economic Area and of citizens of the Swiss Confederation* (whose relevant provisions have been detailed hereinabove) was amended and supplemented by the Law no. 178/2019. The new regulations brought important changes regarding the assurance of the right to education for children and adults who have acquired international protection in Romania, especially regarding the inclusion in the national education system, the provision of Romanian language courses for minors and adults and the certification of language skills, the involvement of non-governmental organizations in initiating and carrying out educational / socio-cultural integration activities for these beneficiaries, financial support, etc.

Intersectoral strategies:

Within the *National Strategy on Immigration for the period 2015-2018*, the *Action Plan for the period 2017-2018*, the *National Strategy on Immigration for the period 2019-2022* and the *Action Plan for the period 2019-2022*, respectively, a general strategic objective is

¹⁴ Articles/Paragraphs 1 and 3.

¹⁵ Namely the 2016 New York Declaration for Refugees and Migrants, the Comprehensive Refugee Response Framework and the two Global Compacts on refugees and for safe, orderly and regular migration.

Romania's active participation to the international community and EU Member States' efforts regarding the extra-EU relocation process and social integration of third-country nationals.

Within this goal, education and training are among the most powerful tools for integration and thus, the access to education and training should be ensured as soon as possible. To this end, a reformed language learning and assessment system for newly arrived migrants is a prerequisite and should be based on promoting inclusive education, improving third-country nationals' skills, and removing barriers to the participation of migrant children in education. As part of the skill assessment and recognition of qualifications process, it is also envisaged to include third-country nationals in training programs and support activities.

The strategy on vocational education and training in Romania for the period 2016-2020 took into account, when considering the elements that underpin the Strategy, the possibility that a significant emigration flow might entry in Romania, including illiterate persons and persons lacking qualifications. Therefore, the legislative changes pursued have targeted mainly the development of literacy programs for Romanian and foreign citizens which can be delivered both in the classroom and online, as well as measures fostering the participation of Romanian and foreign citizens in qualification courses, regardless of their level of education. The strategy also includes measures aiming to make the procedure of competence recognition more flexible.

Within the *National Lifelong Learning Strategy (2015-2020)* the main beneficiaries targeted by the Strategy include persons in need of recognition of previously acquired skills, disadvantaged or underrepresented groups - categories which include persons applying for or enjoying international protection in Romania. The Pillar 1 of the strategy (*Access and incentives for participation*) has as an action line the recognition of prior learning, including the recognition of competences acquired abroad in the case of people with unrecognized competences.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☒ Inclusion in mainstream education
- ☒ Provision of language courses
- ☐ Specific training for educational staff
- ☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☒ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☒ Non-formal and/or alternative education programmes
- ☒ Financial support
- ☒ Other innovative measures:

The minister of education and research orders no. 6134/2016 on the prohibition of school segregation in pre-university education units (Art. 4 - 8) and no. 5633/2019 on the approval of the Methodology for monitoring school segregation in pre-university education (mentioned in section 1.1)

In 2019, the United Nations High Commissioner for Refugees (UNCHR) in Romania, in partnership with the West University of Timisoara, awarded the first scholarship to a refugee in Southeast Europe. The scholarship covers accommodation expenses and the equivalent of a social scholarship and it is paid by the West University of Timisoara. Students and

prospective students (high school graduates) enjoying the refugee status in Romania can enrol in this scholarship program.

Please briefly elaborate further on the measures taken:

- **Inclusion in mainstream education**

- From 2018, the enrolment of foreign children in mainstream education is regulated by *Order no. 3027/2018 for amending and supplementing the Framework Regulation for the organization and functioning of pre-university education units approved by Order no. 5079/2016*. For the enrolment of persons applying or enjoying a form of international protection in the Romanian education system, at all strands, an application request must be submitted either directly by the pupils who are 18 years old (who have reached majority) or by parents or legal guardians in the case of minor pupils.

The enrolment is possible upon participation in the introductory/preparatory Romanian language course and the recognition and equivalence of studies by the competent institutions or, where appropriate, upon completion of the assessment procedures that allow for the determination of the study level (art. 136 of Order 3027/2018).

Persons requesting or having acquired a form of international protection may choose to continue their studies, including within the *Second Chance Program*, while simultaneously attending the preparatory language course in Romanian.

Order no. 3236/2017 on the approval of the Methodology for receiving foreign citizens to studies for tuition free places and scholarship and for tuition free places without scholarship, in accredited state higher education institutions provides that foreign citizens applying for or having acquired a form of protection in Romania or stateless persons whose residence on the territory of Romania is officially recognized according to the law aiming to pursue higher education studies, are entitled to attend the preparatory Romanian language course without payment of tuition fees. In addition, these persons are exempted from paying the registration fee, the file processing fee, as well as the fees for the assessment of Romanian language skills, for the PhD admission test or for specific aptitude tests.

Provision of language courses

In addition to the details already mentioned in section 1.3, please note the following:

The County School Inspectorates are the institutions responsible with the provision of Romanian language courses to the beneficiaries of international protection / refugees / immigrants - children and adults.

Minors or adults who have been granted international protection in Romania are entitled to attend an intensive and free of charge preparatory course for learning the Romanian language, carried out during a school year. The enrolment in this course is possible throughout the calendar year, and the attendance of the course can be continued in the next school year, as the case may be (art. 10, para. 1 and art. 14, para. of Government Ordinance no. 44/2004).

While attending the introductory course, minors participate free of charge in all the didactic activities (theoretical, practical and recreational) carried out within the school units, without the requirement of being registered in the official documents.

In 2020, by order no.3310/2020, the subject curricula for teaching the Romanian Language preparatory courses for minor and adult foreigners, respectively were approved: the *Romanian language- initiation course for adult foreigners who have acquired a form of international protection in Romania and third country nationals* and the *Romanian Language - initiation course for foreign children who have acquired a form of international protection in Romania and third country nationals*.

Foreign citizens who want to pursue higher education studies in Romanian, but who do not have the language skills, have the possibility to attend the *Romanian language preparatory year for foreign citizens* (as provided for by Order no. 3473/2017, mentioned above), which allows them to acquire a language proficiency in Romanian at B1 level, according to the Common European Framework of Reference for Languages.

- **Specific training for educational staff**

Programs run by NGOs in view of developing practitioners' skills and educational resources:

- Within the *Project REACT_RO: Educational resources for learning the Romanian language and cultural accommodation for the beneficiaries of international protection and third country nationals in Romania*, educational resources for teachers were developed, such as: specific textbooks and workbooks for Romanian language teachers and students, as well as materials for the assessment of competencies.

- In 2019, UNHCR provided practitioners with educational resources ("Teaching-learning notions about refugees"), free and adaptable teaching materials on refugees, asylum, migration, and statelessness. Also, a section dedicated to professional development and guidance for primary and secondary school teachers on the inclusion of refugee children in the classroom, was introduced on its website.

- **Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance**

- The socio-cultural integration programs and the activities fostering cultural accommodation, counselling, and learning of the Romanian language, respectively are granted by the Romanian state at the request of refugees and migrants. These programs and activities are organized in the regional reception centres or in other places of business, including schools, situated in the proximity of the respective reception centres. The General Inspectorate for Immigration provides the necessary spaces for the organization and delivery of courses, within the available resources, in collaboration with non-governmental organizations that carry out activities in the field of integration of foreigners.

- Different campaigns and projects aiming at the integration of refugees were organized at national level by organizations such as Save the Children Romania (*Protection of refugee children*, 2018-2019; *Lab31 - Facilitating the integration of foreign children through play*, January-May 2019); JRS Romania (*My Place - a bridge for the integration of beneficiaries of international protection and third country nationals in Romania*, 2019-2020); UNICEF (*Refugee or Migrant? Campaign*, 2015), Terre des Hommes (*Move Together - Sport as a tool for the integration and social inclusion of refugees*, 2018), International Organization for Migration (IOM Romania).

- **Alternative administrative procedure (placement tests, portfolio of evidence)**

- The National Centre for Recognition and Equivalence of Diplomas (NCRED) recognizes pre-university studies obtained abroad, including for persons who have obtained international protection or refugees, by assessing the studies pursued and by establishing the level, field and / or specialization corresponding to the Romanian education system. Depending on the case, this can be done automatically, or it may imply taking certain exams or other compensatory measures. In applying the compensatory measures, NCRED collaborates with the County School Inspectorates and with the School Inspectorate of Bucharest Municipality.

- **Non-formal and/or alternative education programmes**

Refugee children can participate in the School after School Program, provided to pupils regardless of age, ethnicity or race and offering educational and recreational activities to strengthen acquired skills or accelerate learning, as well as remedial learning activities.

Persons who have requested or received a form of international protection may opt to continue their studies, including by enrolling in a "Second Chance" program, while participation in the Romanian language initiation course. (art. 136 (13) of Order No. 3027/2018).

European Erasmus + projects aim to modernize and internationalize education, training, and youth activities.

European eTwinning projects - provide teachers with an online environment where they can develop and carry out educational projects, in collaboration with colleagues from 37 other European countries (e.g. the project, "Integrating migrant students in schools", 2017, <https://www.etwinning.net/en/pub/highlights/new-group-on-the-community-in.htm>).

In Romania, many of the activities targeting refugees and migrants are organized by NGOs which are partners with the General Inspectorate for Immigration. For example, Save the Children Romania Organization has been carrying out social, educational, and recreational activities in reception and accommodation centres for asylum seekers in Romania since 1998. Other such organizations providing educational activities for minors and adults are: Romanian National Council for Refugees, Romanian Forum for Refugees and Migrants, Jesuit Refugee Service - Romania, World Vision Foundation Romania, ICAR Foundation, Ecumenical Association of Romanian Churches, Terre des hommes Foundation - Switzerland, Intercultural Institute of Timișoara.

- **Financial support**

The participation of foreigners in pre-university education is ensured and free of charge once the right of residence / international protection or refugee status has been obtained.

Art. 82, para. 5 of the Law of National Education no. 1/2011 foresees the granting of study scholarships to foreign pupils and students.

Art 206, para. 1 of the same law foresees that the Romanian state provides a number of scholarships for the education of foreign students annually. These scholarships are granted only to those state or private universities and study programmes that meet the highest quality standards.

Within the EAA and Norwegian grants 2014-2021, the program in the field of home affairs includes measures aimed at developing the institutional and operational capacity of authorities responsible for asylum and migration, which also covers educational activities as part of the integration process of migrants and refugees. A call for projects was launched in this regard. In addition, one predefined project aims to improve the conditions for the most vulnerable asylum seekers, as well as to improve reception and case management centers and the level of preparedness for a major influx of asylum seekers.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☒ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

- The school infrastructure is poorly developed in some communities, especially in rural, isolated area, with declining school populations.
- In some cases (remote areas), pupils must travel long distances between home and school.
- Pupils of compulsory education age from socio-culturally disadvantaged backgrounds are faced with the lack of material and financial resources, which negatively impacts school participation.
- There are parents who choose not to send their children to kindergarten regularly, or to delay schooling at the age of 6, respectively.
- Large cities are faced with an insufficient development of the preschool networks (kindergartens), compared to the number of children of appropriate age.
- The insufficient development of an inclusive school culture, in addition to the limited allocation of human resources and support materials, may influence children with disabilities' access to mainstream education.
- There are cases when parents refuse to accept the fact that their child has special needs and therefore, they do not take the necessary steps for requesting and receiving the appropriate specialized support.

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

- Educational establishments located in disadvantaged socio-economic backgrounds are confronted with a lack of qualified teaching staff, especially at secondary level.
- The number of teachers belonging to certain categories (such as, school counsellors, support teachers, itinerant teachers for students with disabilities, etc.) is insufficient within the Romanian educational system, especially in rural schools.
- Frequent changes in the school curriculum have not always been accompanied by unitary curricular training, aimed at developing teachers' skills in applying the new national curriculum.
- Teachers do not have sufficient expertise in developing curricular adaptation strategies to the specific needs of pupils (e.g. pupils with disabilities / special educational needs in mainstream education).
- The inadequate school infrastructure of some schools (schools in poor conditions, schools not large enough to adequately accommodate a large number of pupils) has a negative impact on the quality of education.

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/ inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

- There is no regular monitoring system that would provide up-to-date and real-time information on pupils at risk of dropping out or dropping out of school. In addition, those responsible for reporting pupil enrolment data lack the necessary training.
- There is a lack of longitudinal studies on the impact of the measures adopted to support vulnerable pupils.
- Sometimes the cooperation between the institutions involved in ensuring the access and participation of children / young people in education is deficient.

☐ Other:

- 1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

Some of the steps taken to eliminate the obstacles encountered include:

- granting pupils free transport;
- ensuring school transport for some pupils;
- continuing the implementation of socio-economic support programs: School supplies, Croissant Roll and Milk, Money for High School, Professional Scholarship, Euro 200, Romanian School Program, School after School Program, Vouchers for kindergarten;
- building and improving the ECEC infrastructure needed to foster the access to and attendance by all children of preschool education. To this end, the Ministry of Education and Research implements the Project on the Reform of the Early Childhood Education in Romania, financed by the Romanian Government and the Development Bank of the Council of Europe. One component of this Project aims at the construction and furnishing of 384 kindergartens in the time frame 2009-2021. A number of 204 kindergartens have already been accomplished, while 89 are under construction. The procedures for the construction of 91 additional kindergartens are in progress.
- developing intervention programs in schools in the communities facing high dropout rates and school absenteeism (for example: "Let's go to school!" campaign, the project "Social inclusion through integrated services at community level" carried out with UNICEF's support);
- implementing the large-scale project *Relevant Curriculum, Open education for all* (CRED), whose general aim is to prevent the early school leaving of pupils and whose main actions address several important obstacles. As already mentioned hereinabove, within this project a significant number of primary and secondary teachers (55,000 in total) will receive training to prepare them to successfully implement the new curricula and to prepare them on how to deliver learner-centered learning. Another component of the Project aims at increasing the quality and relevance of teaching and learning activities in schools with vulnerable population.
- implementing tailored projects funded from European Structural Funds. In this regard, in 2016 two call for projects were launched: *Motivated teachers in disadvantaged schools* and *School for all*, respectively.

Motivated teachers in disadvantaged schools is dedicated to highly disadvantaged schools, having large numbers of pupils in risk of school dropout and who fail to attract and retain qualified teachers. 27 projects were selected and benefiting from a total budget of EUR 28,56 mil, which will provide 6977 beneficiaries (teachers and support staff from disadvantaged schools) with trainings and exchange of good practices for developing the competences needed to work with children in educational risk situations: children at high risk of school dropout (the majority is represented by children from poor families, children with disabilities, Roma children, children from remote areas etc.); hospitalized children; children in detention (juvenile delinquency)).

School for all targets children from disadvantaged schools, those in risk of school dropout, the youth and adults that prematurely quit school and who would like to continue their studies, as well as the teachers and other specialists that need support for adapting their activity to the needs of the children. Thus, the concrete targets pursued by this initiative include: facilitating the participation of 27,593 young children and pre-school children aged 0 to 5 years old to early childhood education and care; supporting 63,268 pupils (primary

and secondary level) to attend school and lowering the risk of school dropout; bringing 8,653 youngster age 12 to 16 back to school; ensuring that 8,210 young people and adults, who have not completed compulsory education, acquire a qualification upon graduating from a *Second chance* programme; ensuring the participation of 15,548 teachers and support staff (school mediators, school counsellors, principals and educational specialists) to training programmes and exchange of good practices; ensuring the improvement 15,709 teachers and support staff's competencies. 127 projects were selected and are under implementation, benefiting from a total of EUR 164,662,306.71 mil. budget.

- the drafting and implementation of sectoral strategies, in particular the *National Strategy for the Reduction of Early School Leaving* which address one of the most urgent challenges faced by the Romanian education system, that is the early school leaving. The Strategy will also result in the development of an efficient system for the collection and the analysis of data and information on participation in school.

- the elaboration of strategies and methodological norms regarding school desegregation and educational inclusion.

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

☒ Translation of the Convention/Recommendation into the national and possibly local languages

☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education

☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education

☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other:

--